

23AVCV01189 23AVCV01189

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Case Number: 23AVCV01189 Hearing Date: July 14, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MARLON HAMILTON

Plaintiff,

v.

GENERAL MOTORS, LLC.; and DOES 1 through 10, inclusive,

Defendants.

Case Number 23AVCV01189

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 14, 2026

Dept. A-14

Judge William H. Forman

I. Background

This case arises from Defendant General Motors' alleged violation of its statutory obligations under the Song-Beverly Consumer Warranty Act.

On October 19, 2023, Plaintiff Marlon Hamilton (Plaintiff) filed a complaint against Defendant General Motors, LLC (Defendant), asserting causes of action for (1) violation of subdivision (d) of Civil Code section 1793.2, (2) violation of subdivision (b) of Civil Code section 1793.2, (3) violation of subdivision (a)(3) of Civil Code section 1793.2, (4) breach of the implied warranty of merchantability, and (5) violation of the Magnuson-Moss Warranty Act.

On November 23, 2023, Defendant filed its answer.

On February 25, 2025, Plaintiff filed a notice of conditional settlement of the entire case.

On July 18, 2025, pursuant to a stipulation, the case was dismissed with prejudice and the Court retained jurisdiction pursuant to California Code of Civil Procedure section 664.6 to enforce the terms of the settlement, including Plaintiff's attorney's fees, costs, expenses, and the funding of such. (Stip. And Order, p. 2:1-11, 3:8-10.)

On March 6, 2026, Plaintiff filed the motion for attorney's fees, costs, and expenses.

On June 26, 2026, Defendant filed its opposition.

On July 7, 2026, Plaintiff filed his reply.

II. Evidentiary Objections

Plaintiff submits 15 evidentiary objections to the Declaration of Xylon Quezada. The Court rules as follows:

Objection 13 is SUSTAINED.

Objections 1-12, 14-15 are OVERRULED.

III. Request for Judicial Notice

Plaintiff requests that the Court take judicial notice of Court Orders and rulings granting requests for attorney's fees, costs, and expenses in 35 Song-Beverly cases within various trial and federal courts in California. (See RJN, p. 1-4, ¶¶ 1-35.)

California Evidence Code section 452 permits judicial notice being taken of the records of any court in California. (Evid. Code, § 452, subd. (d).) California Evidence Code section 453 mandates a court take judicial notice of a matter specified in section 452 if a party so requests, gives the adverse party sufficient notice through pleadings or otherwise, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code, § 453, subd. (a), (b).)

The Court finds that the 35 documents are records of the California Superior Court, County of Los Angeles, have been sufficiently identified by Plaintiff, and were served along with the present motion, providing sufficient notice to Defendant through the moving papers.

Accordingly, Plaintiff's Request for Judicial Notice is GRANTED for the limited purpose that they are records of the Court. The Court does not take judicial notice of the truth of the matters asserted therein.

IV. Legal Standard

Standard for Motion for Attorney's Fees, Costs, and Expenses – Under Civil Code section 1794, subdivision (d), the prevailing buyer under the Song-Beverly Consumer Warranty Act is entitled to fees that were reasonably incurred: "If the buyer prevails under this section, the buyer shall be allowed by the Court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code, § 1794, subd. (d).) The trial court has an obligation to award only those attorneys' fees that are reasonable. (See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095-96; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) A prevailing party includes the party with a net monetary recovery in settlement of the case. (Code Civ. Proc., § 1032, subd. (a)(4).)

The lodestar method is the primary method for determining a reasonable attorney fee award under section 1794, subdivision (d). (*Robertson v. Fleetwood Travel Trailers of California, Inc.* (2006) 144 Cal.App.4th 785, 818-19.) "A trial court assessing attorney fees begins with a touchstone or lodestar figure, based on the careful compilation of the time spent and reasonable hourly compensation of each attorney involved in the presentation of the case." (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1321 [internal quotations omitted].) "The reasonableness of attorney fees is within the discretion of the trial court, to be determined from a consideration of such factors as the nature of the litigation, the complexity of the issues, the experience and expertise of counsel and the amount of time involved. [Citation.] The court may also consider whether the amount requested is based upon unnecessary or duplicative work." (*Wilkerson v. Sullivan* (2002) 99 Cal.App.4th 443, 448 (citations omitted).) "The basis for the trial court's calculation must be the actual hours counsel has devoted to the case, less those that result from inefficient or duplicative use of time." (*Horsford v. Board of Trustees Of California State University* (2005) 132 Cal.App.4th 359, 395.) "The law is clear, however, that an award of attorney fees may be based on counsel's declarations, without production of detailed time records." (*Raining Data Corp. v. Barrenechea* (2009) 175 Cal.App.4th 1363, 1375.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of "fees customarily charged by that attorney and others in the community for similar work." (*Bihun v. AT&T Information Systems, Inc.* (1993) 13 Cal. App. 4th 976, 997 [affirming rate of \$450 per hour], overruled on other grounds by *Lakin v. Watkins Associated Indus.* (1993) 6 Cal. 4th 644, 664; see also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 ["Rate determinations in other cases, particularly those setting a rate for the plaintiffs' attorney, are satisfactory evidence of the prevailing market rate."].)

V. Discussion

Application – Plaintiff requests an order for attorney's fees, costs, and expenses amounting to \$22,597.18 pursuant to a signed California Code of Civil Procedure section 998 Offer of Compromise (998 Offer), the Song-Beverly Consumer Warranty Act, and California Civil Code section 1794, subdivision (d). (Motion, p. 9:16; Notice of Motion, p. 2:5-7.) This total is comprised of (1) \$13,742.50 for attorney's fees, (2) \$4,809.88 for an enhancement of attorney's fees by a multiplier of 1.35,

(3) \$2,044.80 for costs and expenses, and (4) \$2,000 for anticipated attorney's fees for review of Defendant's opposition, preparation of a reply, and appearing at the hearing on this motion. (Motion, p. 9:12-16.)

a. Entitlement to Attorney's Fees, Costs, and Expenses

Here, there is no dispute that Plaintiff is the prevailing party to this litigation, nor that he was entitled to recover reasonable attorney's fees, costs, and expenses incurred in litigation. The 998 Offer establishes that Plaintiff accepted the offer, in relevant part, pursuant to paragraph 3, which states that as an alternative to Defendant's offer to pay Plaintiff's attorney's fees, costs, and expenses in the amount of \$20,000, "at Plaintiff's election, Plaintiff's attorney's fees, expenses and costs that have been reasonably incurred pursuant to California Civil Code § 1794(d) may be determined by the Court via noticed motion. For purposes of any such motion, GM will agree that Plaintiff is the prevailing party." (Stip. and Order dated July 18, 2025, Ex. 1.) The signature of Plaintiff is dated February 24, 2025. (Ibid.) Plaintiff admits to accepting this offer on February 25, 2025. (Motion, p. 3:17-18.)

In any event, it is undisputed that this 998 Offer was accepted by Plaintiff, and it is undisputed that Plaintiff elected for his attorney's fees, costs, and expenses to be determined by the Court on noticed motion pursuant to Section 1794, subdivision (d). Where an accepted 998 Offer designates the plaintiff as the prevailing party and specifically delegated determination of fees to the Court, it thereby entitles the plaintiff to bring the subject motion. (*Engle v. Copenbarger & Copenbarger, LLP* (2007) 157 Cal.App.4th 165, 168-69.)

b. Timeliness of Plaintiff's Motion

Before the Court considers the motion on the merits, the Court must address the timeliness of the present motion. A motion for attorneys' fees must be served and filed within the time for the filing of a notice of appeal in a civil case. (Cal. Rules of Court, rule 3.1702(b)(1).) The time for the filing of a notice of appeal in an unlimited action is 60 days if a "Notice of Entry" of Judgment was served by the court clerk or a party to the action, or within 180 days of entry of judgment or dismissal. (Id., rule 8.104.)

The attorney fee motion deadline is triggered by the "conclusion of the litigation" which is marked by entry of judgment or dismissal in the trial court. (*Catlin Ins. Co., Inc. v. Danko Meredith Law Firm, Inc.* (2022) 73 Cal.App.5th 764, 781; see also Cal. Rules of Court, rules 3.1702(b)(1), 8.104(a)(1)(A)-(C).) The clock starts to run from "either the service of notice of entry of judgment or dismissal (starting a 60-day clock), or if no such notice is given, the entry of judgment or dismissal (starting a 180-day clock)." (*Catlin Ins. Co., supra*, 73 Cal.App.5th at 781.) Accordingly, when an order of dismissal is entered and no notice of dismissal is served, a fee motion, like an appeal, must be filed within 180 days after the date of dismissal. (See *Sanabria v. Embrey* (2024) 92 Cal.App.4th 422, 426-429.)

Defendant argues that because the Court dismissed this case on July 18, 2025, this is the latest date on which the clock could begin to run. Plaintiff had 180 days from this date to file his motion for attorney's fees, with a deadline of January 14, 2026. Accordingly, Plaintiff's motion is untimely. Defendant also cites in support *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644.

The Court is not persuaded that the motion is untimely under either Rule of Court 3.1702(b)(1). The parties here expressly agreed that the Court "shall retain jurisdiction pursuant to California Civil Procedure 664.6 to enforce settlement including Plaintiff's attorneys' fees, costs, and expenses and funding of such." (Joint Stipulation to Dismiss with Prejudice and Retain Jurisdiction Pursuant to CCP 664.6, and Order thereon, of July 17, 2025). The parties' agreement included that "GM will also pay Plaintiff's attorney fees, expenses, and costs in the amount of \$20,000" or, in the alternative, that Plaintiff could bring a noticed motion for his fees and costs and Plaintiff would be deemed the prevailing party for the purposes of such motion. (Id., Ex. 1 thereto.) These promises by GM, agreed to by Plaintiff, were without qualification as to when a motion for attorney's fees should be filed. The Court finds that the parties' unqualified agreement that Plaintiff was entitled to fees, could bring a fees motion, would be deemed the prevailing party for the purposes of the fee motion, and that the Court would retain jurisdiction to enforce these promises, are binding promises to be enforced.

In any event, California Rule of Court rule 3.1702(d) provides that a trial judge may extend the time for filing the motion for good cause, even in the absence of a stipulation or for a longer period than allowed by stipulation. Rule 3.1702(d) permits the court to extend the deadline liberally and retroactively. (See *Robinson v. U-Haul Co. of California* (2016) 4 Cal.App.5th 304, 326 ["A court may grant a request for extension of time to file a motion for attorney's fees even if the motion is not filed until after the deadline for filing an attorney's fees motion under rule 3.1702. Even a claim of inadvertence, if it is not prejudicial, may constitute good cause for a late filing."].)

Here, the Court finds good cause to extend the time for filing the motion for two reasons. First, the award of attorney's fees, costs, and expenses in an amount to be determined by the Court was expressly contemplated and agreed to by both parties, and there is no prejudice to Defendant, who offered Plaintiff this route, in upholding the clear terms of the agreement. Second, while Plaintiff filed the present motion after the ruling in *Hatlevig v. General Motors LLC* (2026) 118 Cal.App.5th 644, the Court notes that the motion was filed within one month of the Court's decision, which is new authority on the issue.

Thus, the Court retroactively extends the deadline for filing the present motion and will hear the motion on the merits.

c. Reasonableness of Attorney's Fees Amount

As discussed, the standard method for calculating reasonable attorney's fees is by multiplying the reasonable hourly rate of the attorneys by the reasonable number of hours billed for the work performed.

i. Reasonableness of Attorneys' Hourly Rates

Plaintiff's counsel argues that their rates are reasonable and consistent with rates regularly approved by courts throughout California for similar lemon law litigation, citing to a plethora of superior and district court cases on the issue. (Motion, p. 6:7-8:2.) The Declaration of Dhara Chandy sets forth the autobiographies and hourly rates of ten timekeepers who worked on the present case. Their roles and hourly rates are as follows:

1. Angel Barker, attorney, admitted to California State Bar in 2003, \$595/hr.
2. James Carroll, attorney, admitted to California State Bar in 2006, \$595/hr.
3. Tionna Carvalho, attorney, admitted to California State Bar in 2014, \$570/hr. in 2023, \$595/hr. in 2024, \$650/hr. as partner in 2025.
4. Dhara Chandy, attorney, admitted to California State Bar in November 2025, \$375/hr.
5. Shelby Clark, attorney, admitted to California State Bar in 1999, \$535/hr.
6. Ian McCallister, attorney, admitted to California State Bar in 1998, \$595/hr. in 2024, \$610 in 2025.
7. Maro Orte, attorney, admitted to California State Bar in 2015, \$525/hr.
8. Michael Shwartz, attorney, admitted to California State Bar in 1998, \$700/hr.
9. Brian Tan, attorney, admitted to California State Bar in 2018, \$450/hr. in 2023, \$475/hr. in 2025.

10. Sanam Vaziri, attorney, admitted to California State Bar in 1995, \$610/hr.

(Chandy Decl., p. 5-11, ¶¶ A-J.)

Defendant does not argue that any of these rates are unreasonable or should be reduced. As the issue of rate reasonableness is uncontested, the Court accepts the rates for the purposes of this motion. This ruling should not be construed by any other court that this Court has found, after a disputed adjudication, that Plaintiff's counsel's rates are reasonable.

Having reviewed the rates, the Court is not persuaded that Mr. Schwartz's \$700/hr. rate is reasonable in light of the facts that he is not a named partner with SLP and that he, like Mr. McCallister, has 28 years of experience. No reasoning is offered for why Mr. Schwartz's rate is beyond that of Ms. Carvalho, a named partner, Mr. McCallister, an attorney with the same years of experience, or Ms. Vaziri, who has more experience.

Accordingly, Mr. Schwartz's rate is reduced to \$610/hr. The rates requested for the nine other billing attorneys are accepted as requested.

ii. Reasonableness of Hours Billed

Plaintiff's counsel argues they reasonably spent 29.4 hours in prosecuting this action from inception through settlement, with the work allocated efficiently among attorneys and staff, with a majority of the hours concentrated among a core group of attorneys who collectively billed a substantial percentage of the total hours worked. (Motion, p. 7:6-9.) Plaintiff further contends all work performed on the case until settlement was necessary, as Defendant actively proceeded with defending the case and refused to offer settlement until the eve of trial, forcing Plaintiff to continue with litigation. (Motion, p. 7:23-25.)

In opposition, Defendant argues that Plaintiff's request should be denied or reduced due to excessive staffing of ten billing attorneys on a standard lemon law action, resulting in excessive time on routine tasks and avoidable duplication, and to prevent Plaintiff's counsel from benefitting from the resulting inefficiencies. (Opp., p. 2:1-4.) Defendant further notes that it provided Plaintiff an opportunity to avoid motion practice by offering to cover fees, costs, and expenses in the amount of \$20,000, but Plaintiff instead elected to file the instant motion, seeking fees in excess of Defendant's \$20,000 offer. (Opp., p. 5-9.) Defendant further contends the fees should be significantly reduced due to Plaintiff's counsel's reliance on standard templates and recycled trial documents, which Defendant argues do not materially vary from case to case, and some of which were ultimately never filed in this action, providing examples of a complaint, discovery responses and requests, an ESI letter, an NOD, motions in limine, trial documents, and a fee motion from other cases Plaintiff has filed against Defendant for comparison. (Opp., p. 2:21-22, 2:27-28, 3:4-5, 3:8-9, 3:26-4:2; Quezada Decl., ¶¶ 3, 5-6, 8, 15-16, 17, 19.) Defendant argues Plaintiff's counsel's bill padding and requests for preparing the same templates repeatedly in each case constitute unjust enrichment. (Opp., p. 6:26-7:5.) Finally, Defendant notes significant periods of inactivity in this case, reflected in the lack of billing entries. (Quezada Decl., ¶¶ 4, 7, 12, 17.)

Defendant specifically objects to the following charges and requests the specified reduction:

1. Drafting templated complaint – 1.0 hour (\$590) billed on October 18, 2023 – should be reduced by 0.75 hours (\$513.75) (Opp., p. 7:12-15);

2. Templated discovery responses – 1.0 hour (\$450) and 1.5 hours (\$892.50) billed on December 14, 2023 – should be reduced by 2.0 hours (\$1,117.50) (Opp., p. 7:16-20);

3. Templated discovery requests, ESI Letter, and Notice of Deposition – 4.4 hours (\$2,234) billed on March 11, 2024 and January 17, 2025) – should be reduced by 3.4 hours (\$1,699.00) (Opp., p. 7:21-25);
4. Templated motions in limine – 2.4 hours (\$1,464) billed on February 3, 2025 – should be reduced by 1.9 hours (\$1,159.00) (Opp., p. 7:26-8:2);
5. Templated trial documents – 6.1 hours (\$3,202.50) billed on February 18, 2025 – should be reduced by 5.1 hours (\$2,677.50) (Opp., p. 8:3-6);
6. Templated fee motion, reply, and attending hearing – 4.0 hours (\$2,332) billed on March 6, 2026, anticipated fees (\$2,000) – should be reduced by 1.0 hour (\$427) and the anticipated fees should be stricken (Opp., p. 8:7-14);
7. Excessive review and revision – 3.3 hours (\$1,733.50) billed throughout the case – some entries are block-billed and Defendant requests a reduction of 1.65 hours (\$866.75) (Opp., p. 8:19-23.)

On reply, Plaintiff argues that Defendant failed to identify a single duplicative entry or excessive billing resulting from alleged overstaffing of the case. (Reply, p. 2:15-15, 4:22-5:1.) Plaintiff also contends that Defendant's template and bill-padding arguments have been argued and rejected against Defendant in other courts. (Reply, 3:18-22.)

The prevailing party has the burden of showing that the requested attorney fees were "reasonably necessary to the conduct of the litigation, and were reasonable in amount." (Robertson, *supra*, 144 Cal.App.4th at 817.) The party seeking attorney fees "is not necessarily entitled to compensation for the value of attorney services according to [his] own notion or to the full extent claimed by [him]." (Levy v. Toyota Motor Sales, USA, Inc. (1992) 4 Cal.App.4th 807, 816.) Therefore, if the "time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

A court may "reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 39.) It is also appropriate to reduce an award based on inefficient or duplicative efforts. (Id. at p. 38.) However, the analysis must be "reasonably specific" and cannot rely on general notions of fairness or the Court's opinion of the attorneys or importance of a case. (Kerkeles. City of San Jose (2015) 243 Cal.App.4th 88, 102.) Further, in conducting the analysis, courts are not permitted to tie any reductions in the fee award to some proportion of the buyer's damages recovery. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 28, 39.) The detailed billing records Plaintiffs have submitted to validate the billed hours Plaintiffs request "are entitled to credence in the absence of a clear indication the records are erroneous." (Horsford, *supra*, 132 Cal.App.4th at p. 396.) On presentation of a detailed fee bill, accompanied by a sworn affidavit as to the accuracy of the fee bill, the bill is presumed credible, and the court must use these records as a starting point for its lodestar determination. (Id. at 396-97.)

Here, the Court finds most of Plaintiff's counsel's billing reasonable. From October 18, 2023 through March 6, 2026, Plaintiff's counsel billed a total of 24.9 hours of work, including drafting the complaint and filing forms, drafting discovery responses and requests, drafting demands for expert witness designation and declaration, meeting and conferring with Defense counsel, drafting objections to deposition notice and notice to appear at trial, drafting eight motions in limine, reviewing correspondence and offers of settlement from Defendant and communicating with Plaintiff, and reviewing and finalizing the final settlement, notice of settlement, and drafting the present fee motion. (Chandy Decl., Ex. 1, p. 1.)

As Plaintiff argues, while reliance on templated drafts is common and can significantly reduce an attorney's work, counsel is still expected to review these templates and modify them accordingly, considering the specific legal issues raised, the facts of the case, and conducting further research where necessary. For example, Defendant objects to 2.5 hours billed by two attorneys, Mr. Tan and Mr. Carroll, for drafting, finalizing, reviewing, and revising Plaintiff's discovery responses. However, while the Court acknowledges these responses were drafted off templates, regularly used in such actions as conceded by

both parties, the Court finds 2.5 hours reasonable for drafting 98 pages of discovery responses for at least four requests propounded by Defendant, even if said responses were built off a substantially similar template. (See Quezada Decl., Ex. C.)

Furthermore, while staffing a routine, simple Song-Beverly action with over ten attorneys may result in inefficiency, unreasonable billing, duplicative work, and excessive review, the detailed billing records provided by Plaintiff do not identify excessive time for the tasks completed, nor does the Court find that these entries are duplicative. Defendant similarly fails to identify duplication within the records provided. Defendant's offer to pay \$20,000 to Plaintiff for fees, costs, and expenses is an unconvincing argument. Had Defendant wished to avoid the present motion, Defendant could have easily not offered this route to Plaintiff. However, Plaintiff was given the express option by Defendant in the 998 Offer to elect to have his fees, costs, and expenses determined by the Court. Moreover, the Court fails to see merit in the argument that periods of inactivity in this case bear weight on the reasonableness of the fees billed, considering no billing entries were submitted for these inactive periods during litigation.

Finally, the inconsistencies Defendant notes do not warrant a denial of the reasonable fees. For example, Defendant notes that the Chandy Declaration "identifies a January 11, 2023 task for drafting a Case Management Statement and Notice of Posting Jury Fees, even though this action was not filed until October 19, 2023. (Chandy Decl., ¶¶ 2, 7, 10.) Plaintiff's moving memorandum also states that Plaintiff accepted GM's second 998 offer on February 25, 2025, while other materials identify February 24, 2025. These discrepancies reinforce that Counsel's motion was assembled from templates and was not carefully reviewed before filing." (Opp., p. 4:17-22.) On the contrary, these discrepancies are clearly clerical, typographical errors. The billing records provided and the record of the case establishes that the drafting of the CMS and notice of posting jury fees was billed on January 11, 2024, and filed with the Court the same day. The one day discrepancy related to the acceptance of the 998 Offer similarly appears to be a typographical error. In any event, as discussed above, the Court finds the time expended in drafting the present fee motion and conforming it to the facts and specific legal issues in this case reasonable.

However, the Court finds that Maro Orte's billing entry on February 18, 2025 for "[c]ollect[ing] and arrang[ing] trial documents including MILs to create trial binders" unreasonable. Maro billed for two hours of time at \$525, for a total of \$1,050. The Court notes that this is not substantive legal work. While preparation of trial binders is necessary for an upcoming trial, this task is secretarial in nature and does not warrant attorney, or even paralegal, billing. As the United States Supreme Court has held: "Of course, purely clerical or secretarial tasks should not be billed at a paralegal rate, regardless of who performs them. What the court in *Johnson v. Georgia Highway Express, Inc.*, 488 F. 2d 714, 717 (1974), said in regard to the work of attorneys is applicable by analogy to paralegals: 'It is appropriate to distinguish between legal work, in the strict sense, and investigation, clerical work, compilation of facts and statistics and other work which can often be accomplished by non-lawyers but which a lawyer may do because he has no other help available. Such non-legal work may command a lesser rate. Its dollar value is not enhanced just because a lawyer does it.'" (*Missouri v. Jenkins* (1989) 491 U.S. 274, 288 n.10.) Thus, while the Court finds the time spent on this task to be reasonable absent evidence to the contrary, Plaintiff's counsel has made clear they have ample non-attorney staff to whom they are able to delegate such work, and billing this task as an attorney fee is unwarranted. Accordingly, the Court strikes this entry as an unreasonably billed task.

iii. Lodestar Calculation

Based on the foregoing, the Court calculates the amount of reasonable attorney's fees Plaintiff is entitled to recover by multiplying the number of reasonably billed hours for work on this case by the reasonable hourly rate of the billing attorneys as discussed above.

From Plaintiff's \$13,742.50 attorney's fee request, the Court strikes \$1,050 for Orte's billing entry for collection and arrangement of trial documents for preparation of trial binders. The Court further reduces the request by \$36.00 to account for the reduced rate for Mr. Schwartz from \$700/hour to \$610/hour for the February 19, 2025 billing entry for 0.4 hour for preparing for and attending the final status conference and drafting the hearing outcome memorandum submitted.

Accordingly, Plaintiff is entitled to recover \$12,656.50 in reasonably incurred attorney's fees.

d. Anticipated Fees

Plaintiff's counsel requests \$2,000 in anticipated fees in reading and responding to Defendant's opposition and appearing at the hearing on this matter. (Motion, p. 9:15-16.)

Defendant argues in opposition that it should take Ms. Baker no more than half an hour to review the opposition, no more than half an hour to prepare a templated reply brief, and argues the hearing should take no more than one hour. (Opp., p. 8:10-13.) Defendant asks that the court strike the \$2,000 for anticipated fees entirely. (Opp., p. 9:1-2.)

In reply, Plaintiff submits the Declaration of Angel M. Baker, which states that Ms. Baker spent 0.5 hours reviewing Defendant's opposition and Plaintiff's reply and is not seeking reimbursement for time reviewing, but anticipates spending at least 2.0 hours to prepare for (1.0 hour) and attend (1.0 hour) the hearing. (Baker Decl., ¶ 4.) Ms. Baker states she bills at the hourly rate of \$650/hr. and was admitted to the California State Bar in 2003. The Court finds this rate excessive in light of the billing rates discussed above for attorneys with the same or more experience without any justification. Thus, the Court reduces Ms. Baker's hourly rate to \$595/hr. for work performed on this case.

Ms. Baker states that Aarushi Khanna, a law clerk who is not a member of the California State Bar, spent 2.0 hours drafting the reply brief and has an hourly rate of \$360/hr. (Baker Decl., ¶ 3.) To support this rate, Ms. Baker cites numerous court orders approving Ms. Khanna's hourly rate in similar cases. (Baker Decl., ¶ 3.) Paralegal fees are recoverable as attorney's fees. (Guinn v. Dotson (1994) 23 Cal.App.4th 262, 269.) However, the Court is unpersuaded by other courts' approvals of Ms. Khanna's rates in this matter as evidence of market rates for other law clerks or paralegals in the community. While another court may have determined Ms. Khanna's rates are reasonable, the proper standard is reasonable compared to the community, i.e., legal professionals in the community other than those appearing in this case. (See Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132 ["the reasonable value of attorney services is variously defined as the 'hourly amount to which attorneys of like skill in the area would typically be entitled.'].") The Court finds that this rate is not reasonable for a non-attorney who is not licensed to practice. The Court thus reduces Ms. Khanna's rate to \$200/hr.

The Court finds the anticipated time in preparing for and attending the hearing reasonable at 2.0 hours. The Court also finds 2.0 hours in preparing the reply reasonable, given the length and substantive content directly addressing Defendant's arguments raised in opposition.

Accordingly, the Court grants Plaintiff reasonable anticipated fees in the amount of \$400 for preparation of the reply (2.0 hours at \$200/hr. for Ms. Khanna) plus \$1,190 for preparation for and attendance of the hearing on this motion (2.0 hours at \$595/hr. for Ms. Baker), for a total of \$1,590.

e. Fee Multiplier

Plaintiff requests a fee multiplier of 1.35 to the lodestar amount given the result obtained, the substantial risks undertaken, and the delay in Defendant's payment of fees. (Motion, p. 4:1-3.)

Once the Court has determined an appropriate lodestar figure, the court may then determine whether that figure should be adjusted with a positive or negative multiplier. (Graham v. DaimlerChrysler Corp. (2005) 34 Cal.4th 553, 582.) Whether a multiplier or negative multiple is appropriate depends on several factors, including (1) the risks presented by the litigation; (2) the novelty and difficulty of the legal and factual issues involved; (3) the results obtained on behalf of the plaintiff; (4) the skill exhibited by counsel; (5) the extent to which the nature of the litigation precluded other employment by the attorneys; and (6) the contingent nature of the fee award based on the uncertainty of prevailing on the merits and of establishing eligibility for the award. (Consumer Privacy Cases (2009) 175 Cal.App.4th 545, 556; Robertson, supra, 144 Cal.App.4th at 819.) "The 'results obtained' factor can properly be used to enhance a lodestar calculation where [1] an exceptional effort produced [2] an exceptional benefit." (Graham supra, 34 Cal.4th at 582.)

Plaintiff argues the fee multiplier is warranted for the three grounds stated above. First, Plaintiff argues his counsel obtained an excellent result, providing Plaintiff with full compensation for the defective vehicle and vindicating his rights under the Song-Beverly Act, achieved only after his counsel invested substantial time and resources preparing for trial as a result of Defendant's failure to offer reasonable settlement until the eve of trial. (Motion, p. 8:8-16.) Second, Plaintiff's counsel undertook representation on a contingency basis in this case, assuming the risk of no recovery if the case was unsuccessful, and that this risk was substantial as Defendant vigorously defended its case and refused to make a settlement offer until the eve of trial. (Motion, p. 8:21-24.) Third, Plaintiff's counsel has not been compensated for the work performed in this case, which spanned from October 2023 through February 2025, and this delay in payment presents a significant opportunity cost to counsel, who otherwise could have invested their time in matters providing immediate compensation. (Motion, p. 9:4-8.)

Defendant opposes, arguing that this case does not warrant a fee multiplier given the 28 months of inactivity, the lack of novelty or difficulty in the legal and factual questions raised by the case, particularly because Song-Beverly cases tend to raise virtually identical issues, and that no argument has been or could be made that counsel was precluded from taking on other cases, particularly so given that Plaintiff's counsel has over 1,300 active Song-Beverly cases pending against Defendant alone. (Opp., p. 9:4-6, 17-20, 21-26.) Defendant also argues that Plaintiff's counsel's hourly rates already reflect the contingent nature of their work, and that it is impermissible to seek a multiplier for contingency risk and factoring in the contingency risk to the hourly fees of the attorneys who billed on the case, as it results in an unfair double counting and unreasonable fee award. (Opp., p. 9:27-10:13; see Robertson, *supra* 144 Cal.App.4th at 822; see also Horsford, *supra*, 132 Cal.App.4th at 395.) Defendant also argues that the contingency risk in this case was minimal because Code of Civil Procedure section 1794 mandates fee-shifting of attorney's fees and costs to a prevailing party. (Opp., p. 10:14-15.) Finally, Defendant argues that in the absence of any other factor leaning in favor of a fee multiplier, Plaintiff's position, in essence, is that every case taken on a contingency warrants a multiplier which is in clear opposition of the law, which provides that fee enhancements are entirely discretionary. (Opp., p. 10:26-11:2.)

The Court finds that a multiplier is not warranted in this case. While Plaintiff received an excellent result in settlement, and while Plaintiff's counsel took this case on contingency, the Court does not find that this case warrants a multiplier. This is a standard Lemon Law action, and based on the record, the moving and opposition papers filed for the present motion, and the relatively minimal time spent by Plaintiff's counsel on this case (24.9 hours for a case filed in October, 2023 and settled in February, 2025 on the eve of trial), the Court does not find the novelty or difficulty of the legal and factual issues involved, nor the skill exhibited by Plaintiff's counsel, rising to the level of warranting a multiplier. Furthermore, there is no evidence presented that this case precluded Plaintiff's counsel from taking on other employment.

Accordingly, Plaintiff's request for a fee multiplier is DENIED.

f. Costs and Expenses

Plaintiff requests costs and expenses totaling \$2,044.80 in costs and expenses incurred in this matter.

"Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc., § 1032, subd. (b).) "Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." (Code Civ. Proc., § 1033.5, subd. (c)(2).) "If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary." (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774.) "On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs." (*Ibid.*)

"A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or within 180 days after entry of judgment, whichever is first. The memorandum of costs must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case." (Cal. Rules Ct., rule 3.1700, subd. (a)(1).)

In opposition to Plaintiff's request, Defendant argues this request should be denied outright as Plaintiff failed to file a Memorandum of Costs and has not provided any evidence to support the claimed costs beyond a table included with counsel's billing records. (Opp., p. 12:10-12.) Defendant further argues that Plaintiff is undoubtably seeking costs neither allowable nor reasonably necessary to litigation, and without a more detailed description of the costs and documentation to establish the costs were billed to the correct case, it is impossible to determine whether these costs were actually incurred in this case and whether they are reasonable or necessary. (Opp., p. 12:14-19.)

The Court is not convinced by Defendant's arguments. While Plaintiff failed to file a Memorandum of Costs as required by Rules of Court, rule 3.1700, subdivision (a)(1), for the reasons stated above, namely that Plaintiff's recovery of these costs were expressly contemplated for recovery in Defendant's 998 Offer, the Court will consider the costs as offered in Exhibit 1 of the Chandy Declaration, which is signed by Dhara Chandy under the penalty of perjury as being true and correct. (Chandy Decl., ¶ 35, p. 22:6-10.) Furthermore, the costs and expenses table provided by Plaintiff state the date the cost was incurred, who it was paid to, the total amount, and a detailed description of the purpose of the cost. Defendant is incorrect that further supporting documentation is needed, and Defendant fails to point to a single entry which is neither allowable nor reasonably necessary. In reviewing these costs and expenses, they all seem to be related to the service, delivery, or filing of a specified document, which upon review of the record, appears to have been actually served or filed on or about the same date the cost was incurred, or otherwise directly relate to the case. Furthermore, the costs and expenses sought coincide with the active work being done as delineated on the time entries provided by Plaintiff. For example, on February 18, 2025, Maro Orte was preparing exhibit binders for trial. On March 3, 2025, Plaintiff's counsel incurred a charge for \$108.02 for "Print B&W, tabs cardstock, and binder." (Chandy Decl., Ex. 1, p. 2-3.) The Court sees no inconsistencies and no inappropriate, unreasonable, or unrelated charges which are facially improper.

In the absence of evidence or argument to the contrary, the Court finds that Plaintiff's request of \$2,044.80 in costs is reasonable and recoverable.

Accordingly, Plaintiff's request for attorney's fees, costs, and expenses incurred in prosecuting this litigation is GRANTED in the total amount of \$16,291.30, consisting of \$12,656.50 in attorney's fees, \$1,590 in fees incurred in drafting the reply (\$400) and anticipated fees related to this motion (\$1,190). and \$2,044.80 in costs and expenses.

VI. Conclusion

Plaintiff Marlon Hamilton's Motion for Attorneys' Fees, Costs, and Expenses is GRANTED in the total amount of \$16,291.30.